United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

DENUVO GMBH,

Plaintiff,

v.

VOICES38,

Defendant.

Case No. 26-cv-10423-HSG

ORDER DIRECTING PLAINTIFF TO E-FILE PROPOSED ORDER AND ORDER TO SHOW CAUSE

Re: Dkt. No. 15

Pending before the Court is Plaintiff's Ex Parte Motion for Expedited Discovery seeking "narrowly tailored subpoenas" on various non-parties for the purpose of obtaining the identity and contact information of the Defendant. Dkt. No. 15.

Plaintiff submitted their Ex Parte Motion for Expedited Discovery without the required proposed order. Civil L.R. 7-2(c). Therefore, the Court **ORDERS** Plaintiff to e-file a proposed order granting the Ex Parte Motion for Expedited Discovery. Plaintiff shall also submit a proposed order, in Word format, by email to HSG@cand.uscourts.gov, as required by the Court's standing orders. Civil Standing Order ¶ 24, H. S. Gilliam, Jr., U.S. Dist. Ct. N.D. Cal. (July 9, 2024) https://cand.uscourts.gov/judges/hsg/gilliam-jr-haywood-s. Plaintiff is reminded to adhere to the Court's standing orders throughout the remainder of the litigation.

Plaintiff is further **ORDERED TO SHOW CAUSE** why it requires the voluminous data contained in its requests for production to accomplish the narrow preliminary purposes of identifying and serving the Defendant. Dkt. No. 15-1. Courts may permit "limited discovery" after filing of the complaint to "permit the plaintiff to learn the identifying facts necessary to permit service on the defendant." *Columbia Ins. Co. v. seescandy.com*, 185 F.R.D. 573, 577 (N.D. Cal. 1999). Plaintiff's requests for production go well beyond what is needed for the limited purpose of identifying the defendant and could pose substantial privacy concerns. *See Ebates, Inc.*

v. Does, No. 16-CV-01925-JST, 2016 WL 2344199 at * 3 (N.D. Cal. May 3, 2016).

Plaintiff is **DIRECTED** to either file revised subpoenas with a request for production that aligns with the narrowly-tailored subpoena in *Alo, LLC v. Fang,* or justify in detail why each request is properly targeted to the permissible purposes of early discovery. Exhibit D at 16, *Alo, LLC v. Fang*, No. 25-CV-11126-PHK, 2026 WL 1725893 (N.D. Cal. June 15, 2026) ECF No. 16-2. Plaintiff shall file either the revised subpoenas or a statement of 5 pages or less explaining the justification for each document request by October 14, 2026.

IT IS SO ORDERED.

Dated: 10/8/2026

HAYWOOD S. GILLIAM, JR.
United States District Judge